

Opinion of the Court

One of these requirements was unanimity. Wherever we might look to determine what the term “trial by an impartial jury” meant at the time of the Sixth Amendment’s adoption—whether it’s the common law, state practices in the founding era, or opinions and treatises written soon afterward—the answer is unmistakable. A jury must reach a unanimous verdict in order to convict.

The requirement of juror unanimity emerged in 14th-century England and was soon accepted as a vital right protected by the common law.⁹ As Blackstone explained, no person could be found guilty of a serious crime unless “the truth of every accusation . . . should . . . be confirmed by the unanimous suffrage of twelve of his equals and neighbours, indifferently chosen, and superior to all suspicion.”¹⁰ A “‘verdict, taken from eleven, was no verdict’” at all.¹¹

This same rule applied in the young American States. Six State Constitutions explicitly required unanimity.¹² Another four preserved the right to a jury trial in more general terms.¹³ But the variations did not matter much; consistent

⁹ See J. Thayer, *Evidence at the Common Law* 86–90 (1898) (Thayer); W. Forsyth, *History of Trial by Jury* 200 (J. Morgan ed., 2d ed. 1875); 1 W. Holdsworth, *A History of English Law* 318 (rev. 7th ed. 1956); Smith, *The Historical and Constitutional Contexts of Jury Reform*, 25 *Hofstra L. Rev.* 377, 397 (1996).

¹⁰ 4 W. Blackstone, *Commentaries on the Laws of England* 343 (1769).

¹¹ Thayer 88–89, n. 4 (quoting *Anonymous Case*, 41 *Lib. Assisarum* 11 (1367)); see also 1 M. Hale, *History of the Pleas of the Crown* 33 (1736).

¹² See Del. Declaration of Rights § 14 (1776), in 1 *The Bill of Rights: A Documentary History* 278 (1971); Md. Declaration of Rights § XIX, in 3 *Federal and State Constitutions 1688* (F. Thorpe ed. 1909) (Thorpe); N. C. Declaration of Rights § IX (1776), in 5 *id.*, at 2787; Pa. Declaration of Rights § IX (1776), in 5 *id.*, at 3083; Vt. Declaration of Rights, ch. I, § XI (1786), in 6 *id.*, at 3753; Va. Declaration of Rights § 8 (1776), in 7 *id.*, at 3813.

¹³ See Ga. Const., Art. IV, § 3 (1789), in 2 *id.*, at 789; N. J. Const., Art. XXII (1776), in 5 *id.*, at 2598; N. Y. Const., Art. XLI (1777), in 5 *id.*, at 2637; S. C. Const., Art. IX, § 6 (1790), in 6 *id.*, at 3264.